



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM CV-06

FILED BY THE DEFENDANT
REV. 08/2026

IN THE COUNTY / CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR CLEARWATER COUNTY

MOTION TO DISMISS

Ask the Court to throw out a complaint before answering it

PLAINTIFF VS. DEFENDANT Full name of party	CASE NUMBER (UCN) Format: 26-CF-000123 (YY - TYPE - NUMBER) DIVISION JUDGE / HEARING OFFICER CF felony MM misdem. CT crim. traffic TR traffic CC civil SC small claims
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HOW TO USE THIS FORM

Use this when the complaint is legally defective on its face - not when you simply disagree with the facts. Filing this pauses your deadline to answer until the Court rules. If it is denied you normally get 10 days to file your answer.

The defendant moves to dismiss the complaint filed in this action and states the following grounds:

GROUNDSTOR DISMISSAL

☐ Failure to state a cause of action	☐ Lack of subject matter jurisdiction
☐ Lack of personal jurisdiction over this defendant	☐ Improper venue
☐ Insufficient process	☐ Insufficient service of process
☐ Failure to join an indispensable party	☐ Statute of limitations expired on the face of the complaint
☐ Sovereign immunity bars the claim	☐ Qualified immunity bars the claim
☐ Notice of Claim (Form CV-04) was never filed	☐ Notice of Claim waiting period has not expired
☐ The same claim is already pending in another case	☐ The claim was previously decided (res judicata)
☐ The pleading is so vague the defendant cannot respond	☐ The amount claimed exceeds this court's jurisdiction

ARGUMENT IN SUPPORT

EXPLAIN EACH GROUND. POINT TO THE SPECIFIC PARAGRAPHS OF THE COMPLAINT THAT FAIL.

RELIEF REQUESTED

☐ **DISMISS WITH PREJUDICE**
The defect cannot be cured. The plaintiff should not be allowed to refile.

☐ **DISMISS WITHOUT PREJUDICE**
The plaintiff may fix the problem and refile.

☐ **DISMISS WITH LEAVE TO AMEND**
Allow the plaintiff a set number of days to file an amended complaint.

☐ **MORE DEFINITE STATEMENT**
Require the plaintiff to replead with enough detail to allow a response.

☐ **STRIKE PORTIONS OF THE COMPLAINT**
Remove the specific paragraphs identified below.

PARAGRAPHS TO STRIKE

DAYS TO AMEND REQUESTED

HEARING REQUESTED

ESTIMATED HEARING TIME

CERTIFICATE OF SERVICE: A copy of this motion was furnished to all parties of record on the date below.

DEFENDANT OR COUNSEL

PRINTED NAME

DATE

ORDER ON MOTION TO DISMISS

☐ **GRANTED - DISMISSED WITH PREJUDICE**
This action is dismissed and may not be refiled.

☐ **GRANTED - DISMISSED WITHOUT PREJUDICE**
The plaintiff may refile a corrected complaint.

☐ **GRANTED IN PART**
Dismissed as to the counts listed below; denied as to the remainder.

☐ **DENIED**
The defendant shall file an answer within 10 days of this order.

COUNTS DISMISSED

DAYS TO AMEND ALLOWED

ANSWER DUE

MM/DD/YY

FINDINGS OF THE COURT

JUDGE

Sixth Judicial Circuit

PRINTED NAME

DATE